DG INTERNS HUB
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LEGAL AND ETHICAL BASICS OF CYBERSECURITY IN KENYA

1. Authorization

Authorization is clear and specific permission granted by a system owner or a legally authorized representative to perform defined cybersecurity activities.

Before conducting a security assessment, obtain written permission specifying:

- The systems and networks authorized for testing.
- The approved testing dates and times.
- The permitted tools and techniques.
- Restrictions and prohibited actions.
- Emergency contacts and reporting procedures.

Never assume that a system is available for testing simply because it is publicly accessible.

2. Scope

Scope defines the boundaries of a cybersecurity assessment by identifying the systems, activities, and resources included in the authorized engagement.

A scope document should specify:

- IP addresses, hostnames, applications, and test environments.
- Approved testing dates and time windows.
- Permitted assessment methods.
- Targets, systems, or actions that are excluded.
- Data-handling, confidentiality, and evidence-storage requirements.
- Reporting procedures and escalation contacts.

If a system or activity falls outside the approved scope, stop the assessment and seek clarification before proceeding.

3. Rules of Engagement (RoE)

Rules of Engagement (RoE) describe how an authorized cybersecurity assessment must be conducted. They help ensure that testing remains controlled, safe, and consistent with the agreed objectives.

Typical Rules of Engagement cover:

- Assessment objectives and proof of authorization.
- Approved target lists and testing windows.
- Rate limits and prohibited disruptive tests.
- Procedures for handling sensitive information.
- Evidence collection, preservation, and secure storage.
- Incident escalation and communication procedures.
- Conditions for stopping the assessment.
- Final reporting and delivery of findings.

Following the Rules of Engagement helps protect system owners, users, and cybersecurity professionals from unnecessary risks.

4. Relevant Kenyan Legal Framework

4.1 Computer Misuse and Cybercrimes Act, 2018

The Computer Misuse and Cybercrimes Act, 2018, as amended, is a key piece of Kenyan legislation addressing computer misuse and cybercrime. It provides a legal framework covering offences involving unauthorized access, interference with computer systems and data, and other computer-related activities.

Cybersecurity professionals should understand the legal requirements relevant to their work and ensure that all testing is properly authorized.

Official reference:
https://new.kenyalaw.org/akn/ke/act/2018/5/eng@2025-11-04/source

4.2 Data Protection Act, 2019

The Data Protection Act, 2019, establishes requirements concerning the processing of personal data and protects the rights of individuals in relation to their personal information.

These requirements may apply when cybersecurity activities involve customer records, employee details, investigation evidence, or other information that identifies individuals.

Cybersecurity professionals should handle personal data lawfully, maintain confidentiality, and apply appropriate safeguards when collecting, accessing, storing, or sharing evidence.

Official reference:
Office of the Data Protection Commissioner (ODPC): https://www.odpc.go.ke/

4.3 Other Applicable Requirements

Depending on the nature of the assessment, additional legislation, contractual obligations, institutional policies, and industry-specific cybersecurity standards may apply.

Professionals should identify the requirements relevant to their engagement and seek appropriate legal guidance where necessary.

5. Ethical Principles of Cybersecurity

Cybersecurity professionals should observe the following ethical principles:

- **Obtain authorization:** Test only systems for which valid permission has been granted.
- **Respect scope:** Follow the approved scope and Rules of Engagement.
- **Minimize harm:** Avoid unnecessary disruption, damage, or access to sensitive information.
- **Maintain confidentiality:** Protect information, credentials, and evidence obtained during an assessment.
- **Report findings responsibly:** Communicate vulnerabilities and security incidents through approved reporting channels.
- **Protect sensitive information:** Do not disclose passwords, personal data, or confidential technical details without proper authorization.
- **Stop when necessary:** Cease activities that could cause harm or exceed the authorized scope and report the situation to the appropriate contact.

Ethical cybersecurity practice requires technical competence, professional integrity, accountability, and respect for the rights of others.

6. Conclusion

Cybersecurity skills must be applied responsibly, ethically, and in accordance with applicable Kenyan law. Written authorization, a clearly defined scope, and documented Rules of Engagement help establish boundaries for security assessments and protect system owners, users, and security professionals.

By following these principles, cybersecurity practitioners can develop their technical skills while promoting confidentiality, integrity, availability, and responsible security practices.

References

1. **Kenya Law** — Official repository of Kenyan legislation and legal materials: https://new.kenyalaw.org/
2. **Computer Misuse and Cybercrimes Act, 2018** — Kenya Law: https://new.kenyalaw.org/akn/ke/act/2018/5/eng@2025-11-04/source
3. **Office of the Data Protection Commissioner (ODPC)** — Information on data protection in Kenya: https://www.odpc.go.ke/
4. **National Computer and Cybercrimes Coordination Committee (NC4)** — https://www.nc4.go.ke/